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County: los-angeles

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Case Number: 25STCV32159 Hearing Date: July 2, 2026 Dept: 731

SUPERIOR

COURT OF CALIFORNIA

COUNTY

OF LOS ANGELES

DEPARTMENT

731

TENTATIVE RULING

DELMY GONZALEZ MENDOZA,

Plaintiff,

v.

LAW OFFICES OF DANYAL

ROODBARI, et al.,

Defendants.

Case No:

25STCV32159

Hearing Date: July 2, 2026

Calendar Number: 14

Defendants John Hernandez and John Hernandez, Esq. APC demur to the Complaint filed by Plaintiff Delmy Gonzalez Mendoza.

Defendants Law Offices of Oscar R. Swinton, APC and Oscar R. Swinton demur to the Complaint filed by Plaintiff.

Defendants Law Offices of Oscar R. Swinton, APC and Oscar R. Swinton also move to strike portions of the Complaint.

Defendants John Hernandez and John Hernandez, Esq. APC's demurrer is SUSTAINED with 30 days leave to amend.

Defendants Law Offices of Oscar R. Swinton, APC and Oscar R. Swinton's demurrer is SUSTAINED with 30 days leave to amend.

Defendants Law Offices of Oscar R. Swinton, APC and Oscar R. Swinton's motion to strike is DENIED as moot.

Background

On November 4, 2025, Plaintiff Delmy Gonzalez Mendoza ("Plaintiff") filed a complaint against Defendants Law Offices of Danyal Roodbari ("Roodbari"), APC, Estate of Danyal Roodbari, John Hernandez and John Hernandez, Esq. APC (the "Hernandez Defendants"), and Law Offices of Oscar R. Swinton, APC and Oscar R. Swinton (the "Swinton Defendants"), alleging causes of action for Legal Malpractice and Breach of Fiduciary Duty.

Plaintiff alleges that on January 6, 2023, a portion of her ceiling that was drenched in water in her apartment collapsed and while trying to avoid the ceiling, Plaintiff slipped and fell and fractured her foot.

In or around February of 2023, Plaintiff retained Roodbari Law to represent her and prosecute her claims against her landlord. In 2024, Roodbari died. Plaintiff received no notice of Roodbari's death nor what would be happening with her claim. Plaintiff learned of

Roodbari's death in or around December of 2024 or January of 2025.

In approximately December of 2024 or January of 2025, Plaintiff called Roodbari Law and spoke to Angelina, who confirmed that Roodbari had passed and informed Plaintiff that Francisco is now in charge. Angelina either directly stated, or at least implied, that Francisco was an attorney, but Plaintiff is presently informed and believes that Francisco was never an attorney.

On February 4, 2025, Plaintiff went to Roodbari's office in Covina to speak with Francisco. Plaintiff was turned away and told that she could not see him without an appointment. She was given an appointment for February 7, 2025. Francisco gave Plaintiff a business card which stated he was a "negotiator" with Swinton Law.

On February 7, 2025, Plaintiff returned to Roodbari's office in Covina and met with Francisco, who informed Plaintiff "I have your case" and promised her that he would win her case. Francisco informed Plaintiff that she would need to continue to follow up with Angelina about her injuries and course of treatment.

Subsequent to Roodbari's death, a message was placed on Roodbari's website that John Hernandez is the attorney designated to continue Roodbari's practice, and that the clients can choose whether they want to keep their file with the office or transfer the file to another attorney. It further stated that if no decision is made, the file will remain with their office. The message further stated that Hernandez is committed to managing the clients' legal matters effectively and ensuring their rights are respected.

Plaintiff is informed and believes that the statute of limitations for her personal injury claims against her landlord were two years and that her lawsuit against her landlord had to be filed no later than January 6, 2025.

On May 5, 2026, the Swinton Defendants filed this demurrer with motion to strike. On June 4, 2026, Plaintiff filed an Opposition. On June 11, 2026, Defendants filed a Reply.

On May 1, 2026, the Hernandez Defendants filed this demurrer. On June 18, 2026, Plaintiff filed an Opposition. On June

25, 2026, Defendants filed a Reply.

Legal Standard

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

“A

demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc. §§ 430.30, 430.70.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)

At

the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Code of Civil Procedure section 436 allows a court to “[s]trike out any irrelevant, false, or improper matter inserted in any pleading” and “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (C.C.P. §436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.)

Discussion

I.

Defendants

John Hernandez and John Hernandez, Esq., APC's Demurrer

"To

state a cause of action for legal malpractice, a plaintiff must plead (1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney's negligence." (Kumaraperu v. Feldsted (2015) 237 Cal.App.4th 60, 66 [quotations omitted].)

To state the

obvious, an attorney's duty to his or her client depends on the existence of an attorney-client relationship." (Fox v. Pollack (1986) 181 Cal.App.3d 954, 959.) "If that relationship does not exist, the fiduciary duty to a client does not arise." (Id.)

"An attorney-client relationship is not created by the unilateral declaration of one party to the relationship. ... Rather, the relationship can only be created by contract, express or implied." (Koo v. Rubio's Restaurants, Inc. (2003) 109 Cal.App.4th 719, 729.)

Regarding express

contracts, the existence of an attorney-client relationship is a question of law. (Meehan v. Hopps (1956) 144 Cal.App.2d 284, 287, 301.) However, an implied-in-fact attorney-client relationship is based on the facts and circumstances of each case. (See Miller v. Metzinger (1979) 91 Cal.App.3d 31, 39; Hecht v. Superior Court (1987) 192 Cal.App.3d 560, 565-566.)

An implied attorney-client

relationship can arise by inference from the conduct of the parties—neither a fee payment nor a formal agreement is required. (E.g., Lister v. State Bar (1990) 51 Cal.3d 1117, 1126.) The parties' intent and conduct are critical to formation of an implied-in-fact attorney-client relationship. (Hecht, supra, 192 Cal.App.3d at 565.) But also "[t]he relationship may arise without any direct dealings between the client and the attorney." (Streit v. Covington & Crowe (2000) 82 Cal.App.4th 441, 445.)

The following factors are considered for determining whether an implied attorney-client relationship exists: (1) Whether the person reasonably believed he or she was consulting the attorney in the attorney's professional capacity (*Benninghoff v. Superior Court* (2006) 136 Cal.App.4th 61); (2) Whether the person sought legal advice from the attorney and whether the attorney provided advice (*Beery v. State Bar* (1987) 43 Cal.3d 802, 811-812); (3) Whether the attorney indicated by statements or conduct that he or she was representing the person (*Fox v. Pollack* (1986) 181 Cal.App.3d 954, 959); (4) Whether the person paid fees or other consideration in the matter in question (see *Hecht, supra*, 192 Cal.App.3d at 565); (5) Whether the attorney previously represented the person, particularly over a period of time or in several matters or without an express agreement (see *Kane, Kane & Kritzer, Inc v. Altagen* (1980) 107 Cal.App.3d 36, 40-42); and (6) Whether the attorney volunteered his or her services to the person (see *Beery v. State Bar* (1987) 43 Cal.3d 802, 811-812.)

As to the Hernandez Defendants, Plaintiff alleges that after Roodbari's death, a message was placed on Roodbari's website that John Hernandez is the attorney designated to continue Roodbari's practice, and that the clients can choose whether they want to keep their file with the office or transfer the file to another attorney. It further stated that if no decision is made, the file will remain with their office. The message further stated that Hernandez is committed to managing the clients' legal matters effectively and ensuring their rights are respected. However, Plaintiff never alleges that she saw this message in order for the Court to determine whether the complaint's allegations show, at a minimum, that Hernandez indicated by statements that he was representing Plaintiff, thereby potentially creating an implied attorney-client relationship. If Plaintiff did not see the message, then the implied attorney-client relationship could not have been created.

On this basis, the Court sustains the Hernandez Defendants' demurrer to the first and second causes of action with leave to amend.

Lastly, the Hernandez Defendants argue that a malpractice claim against an attorney cannot succeed when the underlying claims were time-barred before the attorney was retained. (*Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518.) Defendants argue that Plaintiff's complaint does not establish that she contacted the Hernandez Defendants or knew of their existence before the statute of limitations expired in January of 2025.

The complaint alleges that Roodbari passed away in 2024. The complaint alleges that subsequent to his passing, the message was placed on Roodbari's website relating to Hernandez continuing the practice. On its face, the complaint does not show that the alleged attorney-client relationship was created after the expiration of the statute of limitations. Defendants present no legal authority that Plaintiff must plead the date she saw this message.

II.

Defendants Law Offices of Oscar R. Swinton APC and Oscar R. Swinton's Demurrer

First Cause of Action for Legal
Malpractice

The Swinton Defendants argue that Plaintiffs' claim for legal malpractice fails to allege causation because the Complaint expressly alleges that her underlying personal injury claim accrued on January 6, 2023, and that the applicable two-year statute of limitations expired on January 6, 2025. They argue the complaint further alleges that Plaintiff's first contact with any purported representative associated with the Swinton Defendants did not occur until February 7, 2026 – more than one month after the statute of limitations had already run.

A plaintiff must prove causation by establishing they should have won the underlying suit. This is called the "case within a case." (See *Namikas v. Miller* (2020) 225 Cal.App.4th 1574.) "It must be shown that the loss suffered was in fact caused by the alleged attorney malpractice. It is far too easy to make the legal advisor a scapegoat for a variety of business misjudgments unless the courts pay close attention to the cause in fact element, and deny recovery where the unfavorable outcome was likely to occur anyway, . . . or where the client's own misconduct or misjudgment caused the problems." (*Viner v. Sweet* (2003)

30 Cal.4th 1232, 1241.)

The Court agrees with Defendants. The Complaint alleges that the statute of limitations to file the underlying claim had run in January of 2025, and Plaintiff alleges no facts showing any contact or any representations from the Swinton Defendants to Plaintiff until February 2025. Thus, the Swinton Defendants' demurrer to the first cause of action for legal malpractice is sustained on this basis with leave to amend.

Second Cause of Action for Breach of Fiduciary Duty

The Swinton Defendants argue that the complaint fails to allege facts showing that Plaintiff retained or entered into any agreement with the Swinton Defendants.

To state the obvious, an attorney's duty to his or her client depends on the existence of an attorney-client relationship." (Fox v. Pollack (1986) 181 Cal.App.3d 954, 959.) "If that relationship does not exist, the fiduciary duty to a client does not arise." (Id.)

As noted above, before February 2025 (when Plaintiff alleges the statute of limitations to her underlying claims had already expired), Plaintiff does not allege any contact or any representations from the Swinton Defendants to Plaintiff. Thus, she fails to plead an attorney-client relationship before the statute of limitations to her underlying claim expired. The Court notes it is not addressing whether the allegations concerning Plaintiff's contacts with the Swinton Defendants beginning February 2025 created an implied attorney-client relationship.

The Swinton Defendants' demurrer is sustained as to the second cause of action on this basis with leave to amend.

The Swinton Defendants next argue the second cause of action for breach of fiduciary duty is duplicative of the first cause of action for legal malpractice. The Court disagrees. The second cause of action alleges a breach of fiduciary duty by failing to comply with certain Rules of Professional Conduct, which has not alleged in the first cause of

action.

In opposition to both the Hernandez

Defendants and Swinton Defendants' motions, Plaintiff relies on the doctrine of res ipsa loquitor.

"[A]s general rule, res ipsa loquitor applies when the accident is of such a nature that it can be said, in the light of past experience, that it probably was the result of negligence by someone and that the defendant is probably the person who is responsible." (Zentz v. Coca Cola Bottling Co. of Fresno (1952) 39 Cal.2d 436, 442.) The conditions for the application of res ipsa loquitor are: (1) the accident must be of a kind that ordinarily does not occur in the absence of someone's negligence; (2) it must be caused by an agency or instrumentality within the exclusive control of the defendant; and (3) it must not have been due to any voluntary action or contribution on the part of the plaintiff. (Newing v. Cheatham (1975) 15 Cal.3d 351, 359.)

In determining whether the presumption of res ipsa loquitor applies, courts have relied on both common knowledge and the testimony of expert witnesses, and they have considered the circumstances relating to the accident in each particular case, such as the extent of control exercised by the defendant, the plaintiff's own conduct, the likelihood of negligence from some third person, and, in some situations, evidence that the defendant is better able than the plaintiff to explain what happened. (Zentz, supra, 39 Cal.2d at p. 442.)

However, Plaintiff

has not shown how res ipsa loquitor would apply as to the question of whether there was an attorney-client relationship. Additionally, as Defendants point out, Plaintiff cannot establish that the accident was caused by an instrumentality within the exclusive control of Defendant as she admits she does not know which attorney it was that took over her file.

In the opposition, Plaintiff also argues additional facts that are not contained in the complaint, which the Court cannot consider. Plaintiff is given leave to amend and may plead these facts.

Accordingly, the demurrers are SUSTAINED with 30 days leave to amend.

III. Motion to Strike

The Swinton Defendants' motion to strike
is denied as moot as the demurrer is sustained in full.